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Tentative Ruling

Re: ***Fitzgerald v. Wright Equities, Inc. et al.***
Superior Court Case No. 25CECG04867

Hearing Date: July 30, 2026 (Dept. 403)

Motion: Defendant Wright Equities, Inc.'s Demurrer to the First Amended Complaint

Tentative Ruling:

To overrule defendant Wright Equities, Inc.'s general and special demurrer to the First Amended Complaint. (Code Civ. Proc., § 430.10, subd. (e), (f).) To direct defendant Wright Equities, Inc. to file and serve its answer within ten days of the date of service of this order by the clerk.

Explanation:

Defendant Wright Equities, Inc. ("Defendant") files a general and special demurrer to plaintiff Kenneth Fitzgerald's ("Plaintiff") First Amended Complaint ("FAC"). The sole cause of action raised in Plaintiff's FAC is a violation of the Unfair Competition Law ("UCL").

Demurrer

The function of a demurrer is to test the sufficiency of a plaintiff's pleading by raising questions of law. (*Plumlee v Poag* (1984) 150 Cal.App.3d 541, 545) The truth of the facts alleged in the complaint are assumed true as well as the reasonable inferences that may be drawn from those facts. (*Miklosy v. Regents of University of California* (2008) 2 Cal.4th 876, 883; see also *Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1168 [actual reliance in support of a fraud claim reasonably inferable from the plaintiff's complaint]; Code Civ. Proc., 452 ["In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties."].)

A general demurrer, "admits the truth of all material factual allegations in the complaint;" the plaintiff's "ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court" (*Alcorn v. Anbro Engineering, Inc.* (1970) 2 Cal.3d 493, 496; *Stella v. Asset Management Consultants, Inc.* (2017) 8 Cal.App.5th 181, 190 ["We assume the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded and matters of which judicial notice has been taken."].)

Necessity of Lease Agreement

Defendant argues that Plaintiff was required to attach a copy of the lease agreement that includes the Foxen's renter insurance provision. However, "[i]n an action

based on a written contract, a plaintiff may plead the legal effect of the contract rather than its precise language." (*Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2002) 29 Cal.4th 189, 198–199, as modified (Nov. 14, 2002).) Here, Plaintiff sufficiently pled the legal effect of the contract. Defendant further argues that the FAC is unclear who the parties to the contract are. However, the FAC states that 5675 Fresno, LP ("5675 LP") operates the building and sufficient information for the purposes of demurrer shows that 5675 LP was the owner of the property. (FAC, ¶ 4; Defendant's Request for Judicial Notice, Exh. A, B, & C.)¹ The relationships between Defendant and 5675 LP are laid out in the FAC. Plaintiff claims that actions taken by Defendant were as agent or employee of 5675 LP and all actions taken were within the scope of that agency or employment. (FAC, ¶ 7.) Thus, any causes of action against Defendant are sufficiently stated to allege that these acts were done as an agent or employee of 5675 LP.

UCL Cause of Action

Business and Profession Code section 17200, also known as the UCL, states, in pertinent part, "unfair competition shall mean and include any unlawful, unfair or fraudulent business act or practice". Plaintiff raises three different bases for Plaintiff's UCL cause of action. If any of the bases survive demurrer, then the whole cause of action survives demurrer. The first basis Plaintiff raises is based on the unlawful prong of the UCL. Plaintiff claims Defendant violated Civil Code section 827 by changing the terms of the lease without adequate notice. Defendant raises two arguments against the claim.

The first defense Defendant argues is that agency liability does not apply to Civil Code section 827. Defendant argues the statute specifically mentions landlords and not agents of landlords. Defendant then cites to *Otanez v. Blue Skies Mobile Home Park* (1991) 1 Cal.App.4th 1521 in support. In *Otanez*, the appellate court found that Civil Code section 789.3 does not apply to persons other than landlords. (*Id.* at p. 1526.) Civil Code section 789.3 is a subsection of general mobile home law. Mobile home law has its own statutes, legislative history, and precedents separate from general landlord-tenant law. Defendant fails to explain how laws specific to mobile homes are applicable in the present situation. Accordingly, the court finds the present situation distinguishable from the facts of *Otanez*.

The second defense to Plaintiff's claim that Defendant violated Civil Code section 827 is that Civil Code section 827 does not apply. Plaintiff submits in opposition that the allegations of the FAC support the conclusion that the lease would have become a month-to-month tenancy. Based on the lease becoming a month-to-month tenancy, Defendant needed to give proper notice as under Civil Code section 827. Defendant did not give proper notice under that Civil Code section 827. Defendant disputes this as a possibility. However, it is "not the ordinary function of a demurrer to test the truth of the plaintiff's allegations or the accuracy with which [plaintiff] describes the defendant's conduct. A demurrer tests only the legal sufficiency of the pleading. [Citation.]" (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 47.) Thus, Plaintiff's claim under the unlawful prong survives demurrer.

¹ Defendant's Request for Judicial Notice is granted as to Exhibits A, B, and C.

As at least one basis of the UCL cause of action has survived, the cause of action as a whole survives demurrer and the other bases need not be examined. Accordingly, Defendant's demurrer to the FAC is overruled.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on 7/29/26.
(Judge's initials) (Date)